

Master Services Agreement (Vendor Draft)

1. Term and Termination

This Agreement shall commence on the Effective Date and continue until terminated. Either party may terminate this Agreement for convenience by providing forty-five (45) days written notice to the other party.

2. Payment Terms

Client shall pay all undisputed invoiced amounts within forty-five (45) days of the invoice date.

3. Limitation of Liability

In no event shall either party's aggregate liability arising out of this Agreement exceed fifty percent (0.5x) of the total fees paid or payable under this Agreement in the twelve (12) months preceding the claim. This limitation of liability applies to all claims without exception.

4. Indemnification

Each party shall indemnify, defend, and hold harmless the other party from and against any third-party claims arising out of the indemnifying party's breach of this Agreement.

5. Renewal

This Agreement shall not renew automatically and requires a new written order form.

6. Assignment

Neither party may assign this Agreement without the prior written consent of the other party.

7. Dispute Resolution

Any dispute arising under this Agreement shall be finally resolved by binding arbitration.

8. Governing Law

This Agreement shall be governed by the laws of the State of New York.